



India: Legal Protection of Geographical Indications

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India: Legal Protection of Geographical Indications

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I. Legal Framework for Protection of Geographical Indications (GIs)

India is a member of the World Trade Organization (WTO)¹ and a contracting party to the Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS Agreement), which it signed in 1994 and which came into force on January 1, 1995.² Article 22 of the TRIPS Agreement requires contracting parties to protect geographical indications.³ In order to comply with its obligations under the agreement, India enacted the Geographical Indications of Goods (Registration and Protection Act) 1999⁴ and the Geographical Indications of Goods (Registration and Protection) Rules, 2002,⁵ both of which came into force on September 15, 2003.⁶ India maintains a *sui generis* system of GI protection.⁷ According to section 2(1)(e) of the Act, “geographical indication” is defined as follows:

“geographical indication”, in relation to goods, means an indication which identifies such goods as agricultural goods, natural goods or manufactured goods as originating, or manufactured in the territory of a country, or a region or locality in that territory, where a given quality, reputation or other characteristic of such goods is essentially attributable to its geographical origin and in case where such goods are manufactured goods one of the activities of either the production or of processing or preparation of the goods concerned takes place in such territory, region or locality, as the case may be.

¹ *About Us*, GEOGRAPHICAL INDICATIONS REGISTRY, <http://www.ipindia.nic.in/about-us-gi.htm>, archived at <https://perma.cc/M6NP-7KCP>.

² *Contracting Parties/Signatories*, Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS Agreement), WIPO, http://www.wipo.int/wipolex/en/other_treaties/parties.jsp?treaty_id=231&group_id=22 (last visited Dec. 7, 2017), archived at <https://perma.cc/5Y2D-ERZ6>.

³ Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS Agreement) art. 22, Apr. 15, 1994, Marrakesh Agreement Establishing the World Trade Organization, Annex 1C, 1869 U.N.T.S. 299, 33 I.L.M. 1197 (1994), https://www.wto.org/english/docs_e/legal_e/27-trips.pdf, <https://perma.cc/PP9Z-8CCF>.

⁴ Geographical Indications of Goods (Registration and Protection Act) 1999, No. 48 of 1999, THE GAZETTE OF INDIA EXTRAORDINARY, pt. II, § 1, New Delhi (Dec. 30, 1999), http://www.ipindia.nic.in/writereaddata/Portal/IPOAct/1_49_1_gi-act-1999.pdf, archived at <https://perma.cc/W72N-NMHA>.

⁵ Geographical Indications of Goods (Registration and Protection) Rules, 2002, THE GAZETTE OF INDIA, EXTRAORDINARY, pt. II, § 3, subsec. (i) (Mar. 8, 2002), http://www.ipindia.nic.in/writereaddata/Portal/IPORule/1_27_1_gi-rules.pdf, archived at <https://perma.cc/2SBR-S4WP>.

⁶ OFFICE OF THE CONTROLLER GENERAL OF PATENTS, DESIGNS AND TRADEMARKS & REGISTRAR OF GEOGRAPHICAL INDICATIONS, MANUAL OF GEOGRAPHICAL INDICATIONS PRACTICE AND PROCEDURE, Preface (July 26, 2011), http://www.ipindia.nic.in/writereaddata/Portal/IPOGuidelinesManuals/1_31_1_manual-of-geographical-indications-practice-and-procedure.pdf, archived at <https://perma.cc/N75E-5SYS>.

⁷ *Id.* at 4.

Explanation.- For the purposes of this clause, any name which is not the name of a country, region or locality of that country shall also be considered as the geographical indication if it relates to a specific geographical area and is used upon or in relation to particular goods originating from that country, region or locality, as the case may be.⁸

According to section 2(1)(f) of the Act, “goods” means any agricultural, natural, or manufactured goods or any goods of handicraft or of industry, and includes foodstuffs.⁹ Though registration is not mandatory, geographical indications can be registered to “protect against unauthorised use of a product name or geographical indication.”¹⁰ However, “proceedings to prevent unauthorised use or to recover damages for infringement cannot be taken if the geographical indication is unregistered.”¹¹

The Act is administered by the Controller General of Patents, Design and Trademarks (CGPDTM) in Chennai, which is the Registrar of Geographical Indications (GIs).¹² The CGPDTM “functions under the Department of Industrial Policy and Promotion, Ministry of Commerce and Industry, Government of India and is tasked with administration of IP laws in the country.”¹³

In 2011, a practical guide for prospective applicants and GI practitioners was finalized. Moreover, guidelines for applications are also maintained on the CGPDTM website.¹⁴

II. Legal Protection for Nonagricultural Products

As of today, the Registry has been able to successfully register around 301 Indian GIs involving agricultural products, handicrafts, manufactured products, natural goods, and foodstuffs. Out of these, 206 (68%) are nonagricultural, including 175 handicrafts, 20 manufactured products, 10 foodstuffs, and 1 natural good.¹⁵

⁸ Geographical Indications of Goods (Registration and Protection Act) 1999, § 2(1)(e).

⁹ *Id.* § 2(1)(f).

¹⁰ Revanta Mathur et al., *IP in Business Transactions: India Overview*, PRACTICAL LAW (Jan. 1, 2017), [https://uk.practicallaw.thomsonreuters.com/0-610-8829?transitionType=Default&contextData=\(sc.Default\)&firstPage=true&bhcp=1](https://uk.practicallaw.thomsonreuters.com/0-610-8829?transitionType=Default&contextData=(sc.Default)&firstPage=true&bhcp=1).

¹¹ *Id.*

¹² *Frequently Asked Questions (FAQs)*, GEOGRAPHICAL INDICATIONS REGISTRY, <http://www.ipindia.nic.in/faq-gi.htm> (last visited Dec. 7, 2017), archived at <https://perma.cc/YN77-8F5W>. For another FAQ on geographic indications registration in India see *Frequently Asked Questions – Geographical Indications In India*, S.S. RANA & CO., <http://ssrana.in/Intellectual%20Property/Geographical%20Indications/GI-FAQ-in-India.aspx> (last visited Dec. 7, 2017), archived at <https://perma.cc/H9QY-MC2N>.

¹³ Q&A, O.P. Gupta, *Controller General of Patents, Designs and Trademarks*, 71(19) INTA BULLETIN (Nov. 1, 2016), https://www.inta.org/INTABulletin/Pages/Controller_General_Gupta_Interview_7119.aspx, archived at <https://perma.cc/B5PN-LLKA>.

¹⁴ *Guidelines*, GEOGRAPHICAL INDICATIONS REGISTRY, <http://www.ipindia.nic.in/guidelines-gi.htm> (last visited Dec. 6, 2017), archived at <https://perma.cc/Z7CC-PDLF>.

¹⁵ IP India, *Registration Details of Geographical Indications* (2017), http://www.ipindia.nic.in/writereaddata/Portal/Images/pdf/Registered_GI.pdf, archived at <https://perma.cc/4NP3-77YE>.

III. Additional Resources

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